

Court No. - 39

Case :- WRIT - C No. - 6615 of 2021

Petitioner :- Urmila Devi

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Prem Babu Verma, Anita Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

Ms. Anita Singh, learned Advocate has put in appearance on behalf of the petitioner. Sri Baleshwar Chaturvedi, learned Advocate appears on behalf of the respondent - Nigam.

The contention in the writ petition is that the petitioner is ready to deposit the dues of the electricity in easy installments.

Sri Baleshwar Chaturvedi, learned counsel for the respondent has pointed out that the provisions in this regard has been incorporated in Clause 6.14 of Electricity Supply Code, 2005 and the power lies with the Executive Engineer concerned.

In view of above, the writ petition is **disposed of** with the direction that:-

1. the petitioner shall approach the Executive Engineer - respondent no. 3 by filing a proper representation invoking Clause 6.14 of Electricity Supply Code, 2005 within a period of three weeks along with copy of this order.
2. In case such an application is moved, the respondent no. 3 shall be under obligation to take expeditious decision in accordance with law preferably within a period of four weeks thereafter under due intimation to the petitioner.

Order Date :- 28.7.2021

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